

*Use this Guide for All FY 2025 Project Submissions
Include a copy in each Qualification Submission*

CERTIFICATIONS

RELEVANT TO PUBLIC LAW 99-399

Statement of Qualifications

for

Purpose of Section 402(a)

of

The Omnibus Diplomatic Security and Antiterrorism Act of 1986

(Public Law 99-399)

(DOSAR 652.236-72 (Deviation)(JUL 2024))

Offeror Shall:

- 1. Complete Certifications 1 through 6**
- 2. Provide documentation:**
 - Tab A, See Certification # 1, Required**
 - Tab B, See Certification # 3, Required if Applicable**
 - Tab C, Certification #4, If Necessary**
- 3. Sign completed Statement of Qualifications at page 9 of 9**

CERTIFICATIONS RELEVANT TO PUBLIC LAW 99-399

**Statement of Qualifications for Purpose of Section 402(a) of the
Omnibus Diplomatic Security and Antiterrorism Act of 1986
(Public Law 99-399)**

Name and address of U. S. person organization providing this information:

Introduction

Section 402(a) of the Omnibus Diplomatic and Antiterrorism Act of 1986, as amended, 2025 NDAA § 7214, (Public Law 118-159) (“Omnibus Act”) provides that a “United States person” or a “qualified United States Joint Venture” must meet certain requirements, listed in subsections 402 (c) (2) and (3) of the Act, to be eligible for the statutory preference. To assist individuals to determine whether or not they qualify as a U.S. person or U.S. joint venture person entitled to preference under Section 402(a), guidance is provided in this Statement of Qualifications.

The Offeror must complete **all** certifications within this Statement of Qualifications and provide sufficient information and attachments to determine “US person” eligibility. Offeror qualifications will be determined on the basis of information submitted in the Statement of Qualifications, including attachments thereto, and the bidder/offeror must demonstrate it meets the qualifications and submit all required information including required Attachments.

For ease of reference, the statutory language will be quoted immediately before the definitions that apply to it. Space for the information requested is provided immediately following definitions. The Department of State reserves the right, in its sole discretion, to interpret and apply the definitions to the information provided by each prospective offeror.

IMPORTANT NOTE: The Statement of Qualifications shall provide information correctly applicable to the U.S. person or U.S person Joint Venture whose qualifications are being certified and shall not include information pertaining to corporate affiliates or subsidiaries unless organized as a formal Joint Venture. Organizations relying on the experience or financial resources of any other legally dependent organization or individual, including parent companies, subsidiaries, or other related firms, in order to meet the “U,S, Person” criteria must do so by way of a formal joint venture. A prospective offeror may be an individual organization or firm or a formal joint venture. To be considered a “qualified United States joint venture person,” every joint venture must have at least one firm or organization that itself meets all the requirements of a U.S. person listed in Section 402(c)(2) and (3) If a Joint Venture (JV) is formed, the company

having 51 percent or greater interest in the JV must be the one completing the Statement of Qualifications.

Warning: Any material misrepresentation made in the Statement of Qualifications may be the basis for disqualification of a bidder/offeror and reference for consideration of suspension or debarment or for prosecution under Federal law (cf. 18 U.S.C. 1001).

Certifications

1. **Section 402 (c) (2) (A):** “The term ‘United States person’ means a person which—
(A) is incorporated or legally organized under the laws of the United States, including the District of Columbia, and local laws.”

Definitions:

“INCORPORATED”—This term refers to the successful *de jure* incorporation of a business organization pursuant to the laws of any United States jurisdiction or component thereof.

“LEGALLY ORGANIZED”—This term refers to the legally recognized existence of a prospective offeror’s organization other than a *de jure* corporation (e.g., a partnership) under the laws of any United States jurisdiction or component thereof. Only prospective offerors that have a legal status, including the right to bring suit, to sign contracts, and to hold property under the law of the jurisdiction where they are doing business will qualify as legally organized. A natural person who is a United States citizen acting in his/her entrepreneurial capacity will be deemed to be a “person legally organized” within the scope of this definition, provided that the prospective offeror holds all required licenses to do business in the jurisdiction where he/she is located.

“UNITED STATES”—the term “United States” shall mean any jurisdiction that is one of the 50 states, the District of Columbia, a United States territory, a United States possession, or the Commonwealths of Puerto Rico and the North Mariana Islands.

Certification # 1: The organization seeking eligibility is [☐] incorporated, [☐] legally organized under the laws of _____ (state) . **ATTACHMENT REQUIRED (Tab A)**

2. **Section 402-(c) (2) (B):** “The term ‘United States person’ means a person which—
(B) has its principal place of business in the United States.”

Definitions:

“PRINCIPAL PLACE OF BUSINESS”—This term refers to the main location of the prospective offeror. For purposes of this section, a prospective offeror must identify only one principal place of business and such location must include at least the offices of the chief operating officer and headquarters staff. Such location must be a United States jurisdiction from which a tax return has been filed or will be filed during the calendar year in which the prospective offeror submits this section 402-(c) information.

“UNITED STATES”—For purposes of Section 402(a)(1), the term “United States” shall mean any jurisdiction that is one of the 50 states, the District of Columbia, a United States territory, a United States possession, or the Commonwealths of Puerto Rico and the North Mariana Islands.

Certification # 2(a): The organization seeking eligibility has its principal place of business in _____ (city, state).

Certification # 2(b): Kind of United States jurisdiction income tax return filed or expected to be filed during the current calendar year:

- (i) _____ Jurisdiction (e.g., federal, state, city)
(ii) _____ Type of return Include all that apply (e.g., income tax, franchise tax, etc.).

3. **Section 402 (c) (2) (C):** “The term ‘United States person’ means a person which—
has been incorporated or legally organized in the United States—
(i) For more than 5 (five) years before the issuance date of the invitation for bids or request for proposals with respect to a new construction project under subsection (a) (1).
(ii) For more than 2 (two) years before the issuance of the invitation or request for proposals with respect to a construction or design project abroad that involves technical security under subsection (a)(2).

Definitions:

“HAS BEEN INCORPORATED OR LEGALLY ORGANIZED”—This term refers to the required continuity of ongoing business. Organizations that have changed only their names have not had any disruption in continuity.

Commented [JL1]: CO ACTION REQUIRED: Please make sure you select the appropriate time frame below, it should be EITHER (i) OR (ii) NOT Both.

Design-Build or Design-Bid-Build is not the determining factor, it's what type of construction that determines whether (i) OR (ii) should be left in the form.

Commented [JL2]: CO edit required: If the project is for construction of New building(s), then keep this in and DELETE (ii).

The 2 yrs is for AE or Renovations/Rehabs.
5 yrs is for New Building(s) Construction.

Commented [JL3]: CO edit required: If the project is for AE (only) or Renovations/Rehabs, then DELETE the above (i) and this will become (i).

The 2 yrs is for AE or Renovations/Rehabs.
5 yrs is for New Building(s) Construction.

Organizations that have been bought, sold, merged, or otherwise substantially altered or enlarged their principle business activities will have the burden of proving that there have been ongoing operations by the same business entity for the required period of time. If the successor entity has acquired all the assets and liabilities of a preceding business and the predecessor business has no further existence, the successor may claim the incorporation date of the preceding business. In any other circumstance, the prospective offeror must show that the law of the jurisdiction in which it operates regards the prospective offeror as the complete successor in interest of the preceding business for purposes of contractual obligations.

“YEARS”—The term ‘years’ refers to calendar years measured from day of the month to day of the month. For example, January 1, 2023 through December 31, 2023 is one calendar year, as is July 1, 2023 through June 30, 2024.

“ISSUANCE DATE”—The Department expects that the issuance date of the Phase II solicitation will be in April 2025 – October 2025.

Commented [JL4]: CO edit Required: Update accordingly

Certification # 3: The organization seeking eligibility as a U.S. Person or U.S. Joint Venture person was incorporated or legally organized on _____(Date).
ATTACHMENT REQUIRED (Tab B)

If this date is less than the required number of years before the issuance date (see Section 402 (c)(2)(C) above for required years of incorporation prior to the issuance of the solicitation), the organization seeking eligibility claims that it has been in business for the requisite period of time based on the material attached at **Tab B:** _____(identify and include). (Material can include such items as certificates of incorporation, partnership agreements, resolutions of boards of directors, etc.)

4. **Section 402 (c) (2) (D):** “The term ‘United States person’ means a person which—has performed within the United States, **or on a Federal Contract abroad** administrative and technical, professional, or construction services similar in complexity, type of construction, and value to the project being bid.”

Definitions:

“ADMINISTRATIVE AND TECHNICAL, PROFESSIONAL, OR CONSTRUCTION SERVICES”—These terms refer to the kind of work in which the prospective offeror is interested. If the proposed contract is for construction management services, the prospective offeror will be expected to demonstrate construction management experience. In general, ‘administrative’ means the capacity or ability to manage; ‘technical’ means the specific skills peculiar to the type of work required; ‘professional’ means expert services resulting from advanced training in the type of work required; and ‘construction’

experience if it has not directly performed all of the actual construction activities. Thus, an entity whose only construction work experience was performed by its legally distinct subsidiary or parent will not be considered to have construction experience.

“COMPLEXITY”—This term refers to the physical size and technical size and demands of the project as identified in the Solicitation Notice.

“PERFORMED”—This term refers to projects that have been fully completed or at substantial completion by the prospective offeror and accepted by the owner or other party to the transaction before or by the time of contract award. Projects still in progress and not at least at substantial completion by the time of contract award have not yet been ‘performed’ for purposes of this definition.

“TYPE OF CONSTRUCTION”—This term refers to the overall nature of the facilities to be built, including the kinds of materials to be used. Thus, if the contract will require the construction of a multi-story office building, the prospective offeror will be expected to demonstrate experience with facilities of this type.

“VALUE”—This term refers to the project value identified in the Solicitation notice and for comparable projects identified by the Offeror includes the total contract price of the project, not to the profit or loss to the contractor.

“WITHIN THE UNITED STATES”—For purposes of this subsection, the term ‘within the United States’ means a United States jurisdiction that is the place where the subject matter of the contract or other arrangement was in fact completed. It does not mean the place where the contract was negotiated or signed. The term ‘United States’ means any jurisdiction that is one of the 50 states, the District of Columbia, a United States territory, a United States possession, or the Commonwealths of Puerto Rico and the Northern Mariana Islands.

“FEDERAL CONTRACT”—This term refers to a legally binding agreement awarded by an entity of the U.S. Government and a party to purchase goods, services, or property.

Certification # 4: List on this page and an attachment (if necessary as **Tab C**), one or more similar projects completed or substantially completed or that is expected to be completed or substantially complete at the time of contract award by the prospective offeror. For each project, provide the following information:

- a. Specific Offeror Entity that performed the contract:
_____ (Entity name)
- b. Location of Performance within the U.S or Abroad:
_____ (city and state, or Country)
- c. Type of service performed:
_____ (administrative, etc.)

- d. Similar Complexity: _____ (office building, square foot, etc.)
- e. Type of construction performed: _____
- f. Completion Date and/or Expected Date for Substantial Completion: _____
- g. Value of project: _____

If the prospective offeror's participation was as a partner or co-venturer, indicate the percentage of the project performed by the prospective offeror: _____%.

5. **Section 402 (c)(2)(E):** "The term 'United States person' means a person which—
- (i) Employs United States citizens in at least 65 percent of its principal management positions in the United States;
 - (ii) Employs United States citizens in more than half of its permanent, full-time positions in the United States; and
 - (iii) Will employ United States citizens in at least 65 percent of the supervisory positions on the foreign buildings office project site."

Definitions:

"IN THE UNITED STATES"—This term refers to those positions the prospective offeror maintains within all jurisdictions which are one of the 50 states, the District of Columbia, a United States territory, a United States possession, or the Commonwealths of Puerto Rico or the Northern Mariana Islands.

"PERMANENT, FULL-TIME POSITIONS"—The term "permanent" refers to jobs with the prospective offeror that are intended to be indefinite, as opposed to limited, season, or project-duration periods. The term "full-time" refers to positions in which the occupants are expected to and ordinarily work 40 hours a week. The term "permanent, full-time positions" covers the portion of the prospective offeror's workforce that continues to be employed without regard to the fluctuating requirements of production or projects.

"PRINCIPAL MANAGEMENT POSITIONS"—This term refers to the chief operating officer of the prospective offeror and those management people reporting directly to him or her. In the case of a partnership, the term refers to every general partner. In the case of a corporation, the term refers to those officers of the corporation who are active in running its day-to-day operations. Members of a corporation's Board of Directors who do not have operational responsibilities do not occupy "principal management positions" simply by virtue of their service on the Board. In all cases, the term also includes the individual or individuals expected to have primary responsibility for the contract if it is awarded to the prospective offeror. Each prospective offeror is responsible for listing all of its principal management positions and identifying their current occupants by name and citizenship.

6. **Section 402 (c) (3):** “The term ‘qualified United States joint venture person’ means a joint venture in which a United States person or persons owns at least 51 percent of the assets of the joint venture.”

Definitions:

“JOINT VENTURE”—This term refers to a formal arrangement by and through which two or more persons or entities associate for the purpose of carrying out the prospective contract. Prospective offerors are advised that a joint venture may not be acceptable for projects requiring a Department of Defense facility security clearance because each co-venturer may pose particular problems in obtaining security clearances. (Additionally, to be acceptable, all members of the U.S. person co-venturer must agree that it is individually and severally liable for the full performance of and resolution of any and all matters arising out of the contract, notwithstanding any provision of the joint venture agreement of law of the jurisdiction under which the joint venture has been created.)

“ASSETS”—This term refers to tangible and intangible assets conveyed to or made available for the joint venture by the co-venturers.

Certification # 6:

- (a) The offeror [] is, [] is not, a joint venture. (mark is or is not)
- (b) If the offeror is a joint venture, the U.S. person participant is:
_____ (name)
_____ (address)
_____ (address)
- (c) If the offeror is a joint venture, the names and countries of citizenship for all co-venturers are as follows:
_____ (name) _____ (citizenship)
_____ (name) _____ (citizenship)
- (d) If the offeror is a joint venture, the U.S. person must certify it will own at least 51 percent of the assets of the joint venture.
I so certify: _____ (signature)
_____ (name typed or printed)
_____ (position)
_____ (title)

SIGNATURE: By signing this document, the offeror indicates that to the best of his/her knowledge, all of the representations and certifications provided in response to the questions contained in this “Statement of Qualifications” are accurate, current, and complete and that the Offeror is aware of the penalty prescribed in Title 18 U.S.C. Section 1001 for making false statements.

Name of Company: _____

By:/s/ _____

Name: _____

Title: _____

Date: _____